

		discovery rule in the FAC, but the FAC fails to allege sufficient facts with sufficient particularity to warrant application of the discovery rule. Specifically, Plaintiff alleges, in purely conclusory terms, that it could not have discovered Defendant's wrongdoing prior to August 2025 because the transactions were mistaken as being "regular operational expenses and not as repayments for the advanced funds." (FAC ¶29.) Accordingly, the negligence cause of action is subject to demurrer as untimely. Plaintiff's Second Cause of Action is subject to the same statute of limitations as its negligence claim. (See <i>Bank of New York Mellon v. Citibank NA</i> (2017) 8 Cal.App.5th 935, 943-944 ["A claim for declaratory relief is subject to the same statute of limitations as the legal or equitable claim on which it is based."].) Accordingly, Plaintiff's Second Cause of Action is subject to demurrer on the same grounds discussed above. Plaintiff has leave to file a Second Amended Complaint that either alleges specific facts to warrant application of the discovery rule or to otherwise allege a cause of action that is not barred by the statute of limitations. Motion to Strike Portions of Complaint In light of the foregoing ruling on the demurrer, Defendant's Motion to Strike is DENIED as MOOT. <i>Case Management Conference continued to January 15, 2027 at 8:30 a.m. in Department C44.</i> Defendant to give notice.
2	Axiom Heat Treatment LLC vs. Upton 2026-01539877	1. Demurrer to Complaint 2. Motion to Strike Portions Of Complaint 3. Case Management Conference <i>All matters continued to 10/29/26.</i>
3	California Bank of Commerce, N.A. vs. JKO Group, LLC 2026-01540180	Demurrer to Complaint <i>Vacated. See notice filed 7/17/26.</i>